

22. *DeLaFuente Jimenez v. Diamond Truck Sales, et al*, Case No. CIVSB2534109
Plaintiff's MTC Responses from Diamond Truck to Form Interrogatories, Set One
Plaintiff's MTC Responses from Diamond Truck to Form Interrogatories Employment, Set One
Plaintiff's MTC Responses from Diamond Truck to Special Interrogatories, Set One
Plaintiff's MTC Responses from Diamond Truck to Requests for Production, Set One
9/14/26, 9:00 a.m., Dept. S-17

As to the Motions to Compel Responses: The Court would **GRANT** these unopposed motions. Responses will be due within thirty (30) days.

As to Sanctions: The Court would also order Defendant Diamond Truck to pay sanctions in the amount of \$2,560, in total, within thirty (30) days of this ruling. The Court notes that the motions were unopposed and that they were largely duplicative.

As to the Motions to Compel, a failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Thus, the Court would grant those motions.

23. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion to Vacate Orders Entered Between 4/24/26 and 4/28/26
9/14/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

Analysis

Defendant brings this motion to vacate based on the premise that the court lacked jurisdiction when it granted Plaintiff summary judgment, a decision that then generated the unlawful detainer judgment against Defendant. Defendant argues Plaintiff lacked jurisdiction because four days prior to the initial hearing on the summary judgment motion, Defendant filed a notice of removal to federal court, seeking to consolidate this action with one Defendant had filed against Plaintiff.

Generally speaking, "the state court's jurisdiction is suspended when the defendant seeking removal gives notice to the state court clerk, and it is reacquired when the district court clerk gives notice to the state court clerk in the form of a certified copy of the remand order." (*Spanair S.A. v. McDonnell Douglas Corp.* (2009) 172 Cal.App.4th 348, 356.) However, the Court of Appeal, Fourth District, however, "recognize[s] a narrow exception to the general rule that state courts cannot proceed further when a